



Bill Number: H.B. 2406

Rogers ADD COW Floor Amendment

Reference to: Senate engrossed House bill

Amendment drafted by: Zack Dean

FLOOR AMENDMENT EXPLANATION

1. Allows records relating to a deceased minor to be disclosed to child welfare agencies and child fatality review teams.
2. Allows records relating to child abuse to be disclosed to a medical examiner, the court and a child fatality review team, and allows the Department of Child Safety to disclose such records in accordance with statutorily outlined permissions.
3. Removes call transcripts from the list of items that are considered to be child abuse records.
4. Requires, rather than allows, a prosecutor to disclose records relating to a deceased minor to the defendant's attorney.
5. Allows the defendant's attorney to share records with a person who is employed to assist with the defense in the criminal case, except that records may not be further disseminated without a court order.
6. Allows a county medical examiner to disclose specified records to a defense attorney or a petitioner in a criminal proceeding or postconviction proceeding for the purpose of assisting with the attorney's representation.
7. Limits the ability of a county medical examiner to release records related to the human remains of a minor to only specified persons and entities.
8. Allows the parent or legal guardian of the deceased minor or the personal representative of the deceased minor's estate to disclose records relating to the deceased minor.
9. Allows such records to be disseminated to any person or entity for any purpose related to investigating an insurance claim, or the prosecution or defense of a personal injury or wrongful death claim relating to the deceased minor.
10. Specifies that restrictions on the release of death scene images that depict the location of a minor's death only apply if the location of the minor's death is actually known.
11. Removes the class 6 felony designation for the unlawful disclosure of specified images by a government employee.
12. Makes technical and conforming changes.

ADDITIONAL COW
ROGERS FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2406
(Reference to Senate engrossed House bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<~~Section 1.~~Section 11-594, Arizona Revised Statutes, is amended to
3 read:

4 ~~11-594. Powers and duties of county medical examiner~~

5 ~~A. The county medical examiner or alternate medical examiner shall
6 direct a death investigation and, on a determination that the
7 circumstances of the death provide jurisdiction pursuant to section
8 11-593, subsection B, shall:~~

9 ~~1. Take charge of the dead body.~~

10 ~~2. Determine if an autopsy is required.~~

11 ~~3. Certify to the cause and manner of death following completion of
12 the death investigation, reduce the findings to writing and promptly make
13 a full report on forms prescribed for that purpose.~~

14 ~~4. Have subpoena authority for all documents, records and papers
15 deemed useful in the death investigation.~~

16 ~~5. Execute a death certificate provided by the state registrar of
17 vital statistics indicating the cause and the manner of death for those
18 bodies for which a death investigation has been conducted and jurisdiction
19 is assumed.~~

20 ~~6. Give approval for cremation or alkaline hydrolysis of a dead
21 body after a death investigation and record the approval on the death
22 certificate.~~

23 ~~7. Notify the county attorney or other law enforcement authority
24 when death is found to be from nonnatural causes.~~

25 ~~8. Carry out the duties specified under section 28-668.~~

26 ~~9. Carry out the duties specified under title 36, chapter 7,
27 article 3.~~

~~10. Provide a blood sample from a deceased person for the purpose of communicable disease testing pursuant to sections 13-1210 and 36-670 if the blood is available and the collection or release will not interfere with a medical examination, autopsy or certification of death.~~

~~11. Observe all policies adopted by the board of supervisors regarding conflicts of interest and disclosure of noncounty employment.~~

~~B. The county medical examiner or alternate medical examiner may:~~

~~1. Assign to a medical death investigator or other qualified personnel all aspects of a death investigation except performing autopsies.~~

~~2. Authorize forensic pathologists to perform examinations and autopsies. The medical examiner or alternate medical examiner may authorize medical students or residents and fellows in pathology training to perform autopsies under the supervision of a licensed physician who is board certified in forensic pathology, pursuant to procedures adopted by the county medical examiner or alternate medical examiner. Authorization and the amount to be paid by the county for pathology services are subject to approval of the board of supervisors.~~

~~3. Authorize pathologist assistants to assist with performing autopsies under the direct supervision of a licensed physician who is board certified in forensic pathology, pursuant to procedures adopted by the county medical examiner or alternate medical examiner. A pathologist assistant may not certify a cause of death or independently perform an autopsy.~~

~~4. Delegate any power, duty or function, whether ministerial or discretionary, vested by this chapter in the medical examiner or alternate medical examiner to a person meeting the qualifications prescribed in this chapter who is employed by or who has contracted with the county to provide death investigation services. The medical examiner or alternate medical examiner shall be responsible for the official acts of the person designated pursuant to this section and shall act under the name and authority of the medical examiner or alternate medical examiner.~~

~~5. Authorize the taking of organs and tissues as they prove to be usable for transplants, other treatment, therapy, education or research if all of the requirements of title 36, chapter 7, article 3 are met. The medical examiner or alternate medical examiner shall give this authorization within a time period that allows a medically viable donation.~~

~~6. Authorize licensed physicians, surgeons or trained technicians to remove parts of bodies provided they follow an established protocol approved by the medical examiner or alternate medical examiner.~~

~~7. Limit the removal of organs or tissues for transplants or other therapy or treatment if, based on a review of available medical and investigative information within a time that allows a medically viable donation, the medical examiner or alternate medical examiner makes an initial determination that their removal would interfere with a medical examination, autopsy or certification of death. Before making a final~~

~~1 decision to limit the removal of organs, the medical examiner or alternate
2 medical examiner shall consult with the organ procurement organization.
3 After the consultation and when the organ procurement organization
4 provides information that the organ procurement organization reasonably
5 believes could alter the initial decision and at the request of the organ
6 procurement organization, the medical examiner or alternate medical
7 examiner shall conduct a physical examination of the body. If the medical
8 examiner or alternate medical examiner limits the removal of organs, the
9 medical examiner or alternate medical examiner shall maintain
10 documentation of this decision and shall make the documentation available
11 to the organ procurement organization.~~

~~12 C. A county medical examiner or alternate medical examiner shall
13 not be held civilly or criminally liable for any acts performed in good
14 faith pursuant to subsection A, paragraph 10 and subsection B, paragraphs
15 5, 6 and 7 of this section.~~

~~16 D. If a dispute arises over the findings of the medical examiner's
17 report, the medical examiner, on an order of the superior court, shall
18 make available all evidence and documentation to a court-designated
19 licensed forensic pathologist for review, and the results of the review
20 shall be reported to the superior court in the county issuing the order.~~

~~21 E. For providing external examinations and autopsies pursuant to
22 this section, the medical examiner may charge a fee established by the
23 board of supervisors pursuant to section 11-251.08.~~

~~24 F. The county medical examiner or alternate medical examiner is
25 entitled to all medical records and related records of a person for whom
26 the medical examiner is required to certify cause of death.~~

~~27 G. NOTWITHSTANDING SECTION 11-597.02 AND TITLE 39, CHAPTER 1,
28 AUTOPSY PHOTOGRAPHS, VIDEO RECORDINGS AND DIGITAL IMAGES DEPICTING THE
29 BODY OF A DECEASED MINOR ARE CONFIDENTIAL AND ARE NOT SUBJECT TO PUBLIC
30 DISCLOSURE.~~

~~31 H. RECORDS PROHIBITED FROM DISCLOSURE PURSUANT TO SUBSECTION G OF
32 THIS SECTION MAY BE RELEASED ONLY TO THE FOLLOWING:~~

~~33 1. THE PARENT OR LEGAL GUARDIAN OF THE DECEASED MINOR.~~

~~34 2. THE PERSONAL REPRESENTATIVE FOR THE ESTATE OF THE DECEASED
35 MINOR.~~

~~36 3. A LAW ENFORCEMENT AGENCY, PROSECUTOR, CHILD WELFARE AGENCY AS
37 DEFINED IN SECTION 8-501 OR COURT FOR THE PURPOSE OF AN INVESTIGATION OR
38 COURT PROCEEDING.~~

~~39 4. A PERSON WHO IS AUTHORIZED BY A COURT ON A FINDING OF GOOD
40 CAUSE.~~

~~41 5. A CHILD FATALITY REVIEW TEAM ESTABLISHED PURSUANT TO TITLE 36,
42 CHAPTER 35.~~

~~43 6. AN ATTORNEY FOR THE DEFENDANT OR PETITIONER IN A CRIMINAL OR
44 POSTCONVICTION PROCEEDING FOR THE PURPOSE OF ASSISTING THE ATTORNEY'S
45 REPRESENTATION IN THAT PROCEEDING.>>~~

1 <<Sec. 1. Section 11-597.02, Arizona Revised Statutes, is amended
2 to read:

3 11-597.02. Autopsy photographs, digital images, x-rays and
4 video recordings; in camera review; exceptions;
5 procedures; immunity

6 A. Notwithstanding title 39, chapter 1, photographs, digital
7 images, x-rays and video recordings of human remains that are created by a
8 medical examiner, alternate medical examiner or their employees or agents
9 during a death investigation that is conducted pursuant to this chapter
10 may not be disclosed by a medical examiner, alternate medical examiner or
11 their employees or agents unless a judge of the superior court grants
12 disclosure of all or part of the materials after reviewing the materials
13 in camera. The judge of the superior court shall balance the interests
14 under the public records laws of this state to determine whether to order
15 disclosure of all or part of the materials. A person that seeks
16 disclosure of the materials described in this section may file a petition
17 in the superior court of the county in which the death investigation
18 occurred for an in camera review of the materials.

19 B. Notwithstanding the provisions of subsection A of this section,
20 the following persons may examine and obtain the materials described in
21 subsection A of this section:

22 1. The county attorney, attorney general or other law enforcement
23 agency having jurisdiction, as necessary for the performance of their
24 duties.

25 2. The surviving spouse, child, parent, legal guardian,
26 grandparent, grandchild or sibling of the decedent or their legal
27 representative or designated agent.

28 3. A personal representative of the decedent's estate or a person
29 designated by the decedent before death.

30 4. Federal, state or local governmental authorities, including
31 public health officers, as necessary for the performance of their duties.

32 5. The attending physician or nurse practitioner.

33 6. A medical or scientific body or university or other educational
34 institution for educational or research purposes, provided that the
35 materials used do not reveal the decedent's identity.

36 7. An attorney for a defendant or petitioner in any criminal or
37 postconviction proceeding for purposes of assisting representation in that
38 proceeding.

39 [C. NOTWITHSTANDING SUBSECTIONS A AND B OF THIS SECTION,
40 PHOTOGRAPHS, DIGITAL IMAGES, X-RAYS AND VIDEO RECORDINGS OF HUMAN REMAINS
41 OF A MINOR THAT ARE CREATED BY A MEDICAL EXAMINER, ALTERNATE MEDICAL
42 EXAMINER OR THEIR EMPLOYEES OR AGENTS DURING A DEATH INVESTIGATION MAY BE
43 EXAMINED BY OR RELEASED TO ONLY THE FOLLOWING:

44 1. THE PARENT OR LEGAL GUARDIAN OF THE DECEASED MINOR.

45 2. THE PERSONAL REPRESENTATIVE FOR THE ESTATE OF THE DECEASED MINOR.

1 3. A LAW ENFORCEMENT AGENCY, PROSECUTION AGENCY, CHILD WELFARE
2 AGENCY AS DEFINED IN SECTION 8-501 OR COURT FOR THE PURPOSE OF AN
3 INVESTIGATION OR COURT PROCEEDING.

4 4. A CHILD FATALITY REVIEW TEAM ESTABLISHED PURSUANT TO TITLE 36,
5 CHAPTER 35.

6 5. AN ATTORNEY FOR THE DEFENDANT OR PETITIONER IN A CRIMINAL OR
7 POSTCONVICTION PROCEEDING FOR THE PURPOSE OF ASSISTING THE ATTORNEY'S
8 REPRESENTATION IN THAT PROCEEDING.

9 6. THE ATTENDING PHYSICIAN OR NURSE PRACTITIONER.

10 7. A PERSON WHO IS AUTHORIZED BY A COURT ON A FINDING OF GOOD
11 CAUSE.]

12 ~~[C.]~~ ~~[D.]~~ ~~[Nothing in]~~ This section ~~[shall]~~ [DOES NOT] affect the
13 conduct of trials or the discovery process as provided by law or court
14 rule.

15 ~~[D.]~~ [E.] The medical examiner or alternate medical examiner may
16 prescribe procedures for the issuance of materials pursuant to
17 ~~[subsection]~~ [SUBSECTIONS] B [AND C] of this section, including
18 reproduction fees.

19 ~~[E.]~~ [F.] A cause of action may not arise against the county
20 medical examiner, alternate medical examiner or their employees or agents,
21 or the county for lawfully disclosing a death investigation photograph,
22 digital image, x-ray or video recording pursuant to this section.>>

23 Sec. 2. Section 13-4434, Arizona Revised Statutes, is amended to
24 read:

25 13-4434. Victim's right to privacy; redaction of victim's
26 name; deceased minor's pictures and videos;
27 exceptions; definitions

28 A. The victim has the right at any court proceeding not to testify
29 regarding any identifying or locating information unless the victim
30 consents or the court orders disclosure on finding that a compelling need
31 for the information exists. A court proceeding on the motion shall be in
32 camera.

33 B. A victim's identifying and locating information that is
34 obtained, compiled or reported by a law enforcement agency or prosecution
35 agency shall be redacted by the originating agency and prosecution
36 agencies from records pertaining to the criminal case involving the
37 victim, including discovery disclosed to the defendant, the defendant's
38 attorney or any of the attorney's staff.

39 C. AUTOPSY PHOTOGRAPHS, VIDEO RECORDINGS AND DIGITAL IMAGES
40 DEPICTING THE BODY OF A DECEASED MINOR ARE CONFIDENTIAL, AND THE MINOR
41 VICTIM'S LAWFUL REPRESENTATIVE, PARENT OR LEGAL GUARDIAN HAS A RIGHT TO
42 NOT HAVE THE IMAGE OR RECORDING DISCLOSED TO ANYONE EXCEPT AS SPECIFICALLY
43 PROVIDED BY LAW OR COURT RULE.

44 ~~C.~~ D. Subsection B of this section does not apply to:

45 1. The victim's name except, if the victim is a minor, the victim's
46 name may be redacted from public records pertaining to the crime if the
47 countervailing interests of confidentiality, privacy, the rights of the

1 minor or the best interests of this state outweigh the public interest in
2 disclosure.

3 2. Any records that are transmitted between law enforcement
4 AGENCIES and prosecution agencies or a court.

5 3. Any records if the victim or, if the victim is a minor, the
6 victim's LAWFUL representative as designated under section 13-4403 has
7 consented to the release of the information.

8 4. The general location at which the reported crime occurred.

9 5. The victim's address, if the victim's address appears in any
10 body-worn camera footage, photographs or other visual or audio depictions
11 and there is evidence that the defendant knows the victim's address
12 because of a relationship set forth in section 13-3601, subsection A.

13 ~~D.~~ E. Notwithstanding subsections A and B of this section, a court
14 may order the victim's identifying and locating information to be
15 disclosed in a specific case if it is necessary to protect the defendant's
16 constitutional rights or when the information is not reasonably able to be
17 redacted because of undue burden or expense. Before the court discloses
18 the information, the victim must be notified and has the right to be heard
19 by the court. If the disclosure is made to the defendant's attorney, the
20 defendant's attorney may not disclose the information to any person other
21 than the attorney's staff and a designated investigator. The defendant's
22 attorney may not provide the disclosed information to the defendant
23 without specific authorization from the court.

24 ~~E.~~ F. On the request of a victim, the victim's name that is
25 obtained, compiled or reported by a law enforcement agency or prosecution
26 agency may be redacted by the originating agency and prosecution agencies
27 from records that pertain to the criminal case involving the victim and
28 that are released pursuant to a public records request if the agency
29 reasonably expects that the release of the victim's name will result in
30 harassment of the victim, threats to the victim's safety or witness
31 tampering.

32 ~~F.~~ G. Subsection ~~E~~ F of this section does not apply to any of the
33 following:

34 1. Any record that is transmitted between law enforcement agencies
35 and prosecution agencies or a court or that is disclosed to the defendant,
36 the defendant's attorney or any of the attorney's staff.

37 2. Any record regarding a victim who is deceased.

38 3. Any record if the victim or, if the victim is a minor or
39 vulnerable adult as defined in section 13-3623, the victim's LAWFUL
40 representative as designated under section 8-384 or 13-4403, ~~has~~ has
41 consented to the release of the information.

42 4. Any record that a court of competent jurisdiction has ordered to
43 be disclosed or FOR WHICH a rule of procedure requires the release ~~of a~~
44 ~~record~~ to a party.

45 5. Any record if the law enforcement agency or prosecution agency
46 has received a notice of final disposition in the criminal case.

47 ~~G.~~ H. For the purposes of this section:

1 1. "Identifying information" includes a victim's date of birth,
2 social security number and official state or government issued driver
3 license or identification number.

4 2. "Locating information" includes the victim's address, telephone
5 number, email address and place of employment.

6 Sec. 3. Section 39-121.04, Arizona Revised Statutes, is amended to
7 read:

8 39-121.04. Public access to law enforcement records depicting
9 certain witnesses or crime victims; victim
10 rights; applicability

11 A. In a special action brought pursuant to this article for the
12 release of any record created or received by or in the possession of a law
13 enforcement AGENCY or prosecution agency that relates to a criminal
14 investigation or prosecution and that visually depicts the image of a
15 witness under eighteen years of age or a victim as defined in section
16 13-4401, the petitioner shall establish that the public's interest in
17 disclosure outweighs the witness's or victim's right to privacy.

18 B. A victim whose image is depicted in a record described in
19 subsection A of this section has the right to be present at and to be
20 heard in any action brought pursuant to this article for the release of
21 records described in subsection A of this section.

22 C. THIS SECTION DOES NOT APPLY TO ANY PHOTOGRAPH, VIDEO RECORDING,
23 DIGITAL IMAGE, LAW ENFORCEMENT BODY-WORN CAMERA RECORDING OR DASH CAMERA
24 RECORDING, SURVEILLANCE RECORDING OR OTHER VISUAL DEPICTION THAT SHOWS THE
25 BODY OF A DECEASED MINOR OR DEPICTS THE LOCATION WHERE THE DEATH OCCURRED,
26 IF KNOWN.

27 Sec. 4. Title 39, chapter 1, Arizona Revised Statutes, is amended
28 by adding article 6, to read:

29 ARTICLE 6. RECORDS OF MINOR VICTIMS

30 39-174. Definitions

31 IN THIS ARTICLE, UNLESS THE CONTEXT OTHERWISE REQUIRES:

32 1. "CHILD ABUSE RECORD" MEANS ANY PHOTOGRAPH, VIDEO RECORDING,
33 DIGITAL IMAGE, LAW ENFORCEMENT BODY-WORN CAMERA RECORDING OR DASH CAMERA
34 RECORDING, SURVEILLANCE RECORDING, FORENSIC INTERVIEW RECORDING, AUDIO
35 RECORDING, 911 EMERGENCY SERVICE TELEPHONE CALL RECORDING OR OTHER VISUAL
36 OR AUDIO DEPICTION THAT SHOWS OR DESCRIBES A MINOR WHO IS THE VICTIM OF
37 CHILD ABUSE AS PRESCRIBED IN SECTION 13-3623 OR THAT IS CREATED DURING A
38 CRIMINAL INVESTIGATION FOR ALLEGED CHILD ABUSE.

39 2. "CHILD WELFARE AGENCY" HAS THE SAME MEANING PRESCRIBED IN
40 SECTION 8-501.

41 3. "DEATH SCENE IMAGE" MEANS ANY PHOTOGRAPH, VIDEO RECORDING,
42 DIGITAL IMAGE, LAW ENFORCEMENT BODY-WORN CAMERA RECORDING OR DASH CAMERA
43 RECORDING, SURVEILLANCE RECORDING OR OTHER VISUAL DEPICTION THAT SHOWS THE
44 BODY OF A DECEASED MINOR OR DEPICTS THE LOCATION WHERE THE DEATH OCCURRED,
45 IF KNOWN.

46 4. "DECEASED MINOR" MEANS A PERSON WHO IS UNDER EIGHTEEN YEARS OF
47 AGE AT THE TIME OF THE PERSON'S DEATH.

1 5. "EMERGENCY CALL RECORDING" MEANS ANY AUDIO RECORDING OF A 911
2 EMERGENCY SERVICE TELEPHONE CALL OR OTHER EMERGENCY COMMUNICATION THAT
3 RELATES TO A DECEASED MINOR'S DEATH.

4 6. "MONETIZE" MEANS TO SELL, LICENSE, DISTRIBUTE FOR COMPENSATION
5 OR USE AN IMAGE TO GENERATE ADVERTISING REVENUE OR FINANCIAL GAIN.

6 39-175. Deceased minor records; prohibited disclosures;
7 exceptions; violation; classification; civil
8 action; discipline or termination of employees

9 A. THE FOLLOWING RECORDS ARE CONFIDENTIAL AND MAY NOT BE DISCLOSED
10 PURSUANT TO THIS CHAPTER OR ANY OTHER LAW:

11 1. AN IMAGE THAT DEPICTS A DECEASED MINOR.

12 2. ANY LAW ENFORCEMENT BODY-WORN CAMERA RECORDING, DASH CAMERA
13 RECORDING OR OTHER LAW ENFORCEMENT VIDEO RECORDING THAT DEPICTS A DECEASED
14 MINOR OR THE LOCATION WHERE THE MINOR'S DEATH OCCURRED, IF KNOWN.

15 3. ANY EMERGENCY CALL RECORDING.

16 4. ANY PHOTOGRAPH, VIDEO RECORDING OR DIGITAL IMAGE OF ANY PART OF
17 THE BODY OF A DECEASED MINOR THAT IS CREATED DURING A DEATH
18 INVESTIGATION.

19 B. NOTWITHSTANDING SUBSECTION A OF THIS SECTION, A RECORD LISTED IN
20 SUBSECTION A OF THIS SECTION MAY BE DISCLOSED TO THE FOLLOWING:

21 1. THE PARENT OR LEGAL GUARDIAN OF THE DECEASED MINOR UNLESS THE
22 PARENT OR LEGAL GUARDIAN IS THE SUBJECT OF AN INVESTIGATION INVOLVING
23 HOMICIDE OR CHILD ABUSE OF THE DECEASED MINOR.

24 2. THE PERSONAL REPRESENTATIVE FOR THE ESTATE OF THE DECEASED
25 MINOR.

26 3. A LAW ENFORCEMENT AGENCY, PROSECUTOR, MEDICAL EXAMINER, CHILD
27 WELFARE AGENCY OR OTHER GOVERNMENT ENTITY AS PART OF AN OFFICIAL
28 INVESTIGATION OR COURT PROCEEDING.

29 4. A PERSON WHO IS AUTHORIZED BY AN ORDER FROM A COURT OF COMPETENT
30 JURISDICTION ON A FINDING OF GOOD CAUSE. IN DETERMINING WHETHER GOOD CAUSE
31 EXISTS, THE COURT SHALL CONSIDER ALL OF THE FOLLOWING:

32 (a) THE PRIVACY INTERESTS OF THE DECEASED MINOR'S SURVIVING FAMILY
33 MEMBERS.

34 (b) WHETHER THE DISCLOSURE IS NECESSARY TO EVALUATE THE CONDUCT OF
35 A PUBLIC OFFICIAL OR AGENCY.

36 (c) WHETHER THE DISCLOSURE WILL CAUSE EMOTIONAL HARM OR TRAUMA TO
37 THE DECEASED MINOR'S SURVIVING FAMILY MEMBERS.

38 [5. A CHILD FATALITY REVIEW TEAM ESTABLISHED PURSUANT TO TITLE 36.
39 CHAPTER 35.]

40 C. IN A CRIMINAL CASE INVOLVING A DECEASED MINOR, THE PROSECUTOR
41 SHALL DISCLOSE THE RECORDS LISTED IN SUBSECTION A OF THIS SECTION TO THE
42 DEFENDANT'S ATTORNEY AS PROVIDED BY LAW AND COURT RULE. THE DEFENDANT'S
43 ATTORNEY MAY SHARE THE RECORDS WITH A PERSON WHO IS EMPLOYED TO ASSIST
44 WITH THE DEFENSE IN THE CRIMINAL CASE, BUT THE RECORDS MAY NOT BE FURTHER
45 DISSEMINATED WITHOUT A COURT ORDER ON A FINDING OF GOOD CAUSE.

1 D. IF A RECORD IS RELEASED PURSUANT TO SUBSECTION B OR C OF THIS
2 SECTION, THE PERSON RECEIVING THE RECORD IS PROHIBITED FROM FURTHER
3 DISSEMINATING THE RECORD, EXCEPT AS FOLLOWS:
4 1. AS AUTHORIZED PURSUANT TO SUBSECTION B OR C OF THIS SECTION.
5 2. THE PARENT OR LEGAL GUARDIAN OF THE DECEASED MINOR OR THE
6 PERSONAL REPRESENTATIVE OF THE DECEASED MINOR'S ESTATE MAY DISCLOSE A
7 RECORD LISTED IN SUBSECTION A OF THIS SECTION.
8 3. TO ANY PERSON OR ENTITY FOR ANY PURPOSE THAT IS RELATED TO
9 INVESTIGATING AN INSURANCE CLAIM OR PROSECUTION OR DEFENSE OF A PERSONAL
10 INJURY OR WRONGFUL DEATH CLAIM INVOLVING OR RELATING TO A DECEASED MINOR.
11 E. THIS SECTION DOES NOT APPLY TO A WRITTEN INCIDENT REPORT,
12 INVESTIGATIVE SUMMARY OR OTHER RECORD THAT DOES NOT CONTAIN A VISUAL
13 DEPICTION OF THE DECEASED MINOR OR AN EMERGENCY CALL RECORDING.
14 F. A PERSON WHO KNOWINGLY RELEASES A RECORD [TO AN UNAUTHORIZED
15 PERSON] IN VIOLATION OF THIS SECTION IS GUILTY OF A CLASS 1 MISDEMEANOR.
16 G. THE PARENT, LEGAL GUARDIAN OR ESTATE OF A DECEASED MINOR MAY
17 BRING A CIVIL ACTION AGAINST ANY PERSON WHO KNOWINGLY RELEASES, PROVIDES
18 OR DISSEMINATES A RECORD IN VIOLATION OF THIS SECTION. IN ANY ACTION UNDER
19 THIS SUBSECTION, THE COURT MAY AWARD THE FOLLOWING:
20 1. ACTUAL DAMAGES.
21 2. STATUTORY DAMAGES OF AT LEAST \$5,000 AND NOT MORE THAN \$50,000
22 FOR EACH VIOLATION. EACH RECORD THAT IS DISCLOSED OR DISTRIBUTED IN
23 VIOLATION OF THIS SECTION IS A SEPARATE VIOLATION.
24 3. REASONABLE ATTORNEY FEES AND COSTS.
25 4. INJUNCTIVE RELIEF PROHIBITING FURTHER DISSEMINATION.
26 H. A GOVERNMENT ENTITY MAY DISCIPLINE OR TERMINATE AN EMPLOYEE WHO
27 KNOWINGLY VIOLATES THIS SECTION.
28 39-176. Death scene images; prohibited monetization; civil
29 penalty; exceptions
30 A. A PERSON MAY NOT MONETIZE OR PROFIT FROM A DEATH SCENE IMAGE
31 THAT IS OBTAINED PURSUANT TO THIS ARTICLE.
32 B. A PERSON WHO VIOLATES THIS SECTION IS SUBJECT TO A CIVIL PENALTY
33 OF \$100,000 FOR EACH VIOLATION.
34 C. THIS SECTION DOES NOT APPLY TO A DEATH SCENE IMAGE WHEN THE
35 IMAGE IS EITHER:
36 1. USED IN A CRIMINAL PROSECUTION OR OFFICIAL INVESTIGATION.
37 2. POSSESSED BY THE PARENT, LEGAL GUARDIAN OR ESTATE OF THE
38 DECEASED MINOR.
39 3. DISCLOSED PURSUANT TO A COURT ON A SHOWING OF GOOD CAUSE UNLESS
40 SPECIFICALLY PROHIBITED BY THE COURT.
41 39-177. Child abuse records; prohibited disclosure;
42 exceptions; good cause determination
43 A. CHILD ABUSE RECORDS ARE CONFIDENTIAL AND ARE NOT SUBJECT TO
44 DISCLOSURE PURSUANT TO THIS ARTICLE.
45 B. NOTWITHSTANDING SUBSECTION A OF THIS SECTION, A CHILD ABUSE
46 RECORD MAY BE DISCLOSED TO THE FOLLOWING:

1 1. THE PARENT OR LEGAL GUARDIAN OF THE MINOR UNLESS THE PARENT OR
2 LEGAL GUARDIAN IS THE SUBJECT OF THE CHILD ABUSE INVESTIGATION OR A
3 HOMICIDE INVESTIGATION.

4 2. THE MINOR'S LEGAL REPRESENTATIVE.

5 3. A LAW ENFORCEMENT AGENCY, PROSECUTOR, MEDICAL EXAMINER, COURT OR
6 CHILD WELFARE AGENCY FOR THE PURPOSE OF AN INVESTIGATION OR COURT
7 PROCEEDING.

8 4. A PERSON WHO IS AUTHORIZED BY AN ORDER FROM A COURT OF COMPETENT
9 JURISDICTION ON A FINDING OF GOOD CAUSE. IN DETERMINING WHETHER GOOD
10 CAUSE EXISTS, THE COURT SHALL CONSIDER ALL OF THE FOLLOWING:

11 (a) THE PRIVACY AND SAFETY INTERESTS OF THE MINOR.

12 (b) WHETHER THE DISCLOSURE IS NECESSARY TO EVALUATE THE CONDUCT OF
13 A PUBLIC OFFICIAL OR AGENCY.

14 (c) WHETHER THE DISCLOSURE WILL CAUSE PSYCHOLOGICAL HARM OR TRAUMA
15 TO THE MINOR.

16 [5. A CHILD FATALITY REVIEW TEAM ESTABLISHED PURSUANT TO TITLE 36.
17 CHAPTER 35.]

18 C. THIS SECTION DOES NOT PROHIBIT EITHER OF THE FOLLOWING:

19 1. THE DISCLOSURE OF A WRITTEN REPORT, AN INVESTIGATIVE SUMMARY OR
20 STATISTICAL INFORMATION THAT DOES NOT CONTAIN A VISUAL DEPICTION OR AUDIO
21 RECORDING OF THE MINOR VICTIM.

22 2. THE DEPARTMENT OF CHILD SAFETY FROM DISCLOSING CHILD ABUSE
23 RECORDS PURSUANT TO SECTION 8-807.

24 D. IN A CRIMINAL CASE, THE PROSECUTOR SHALL DISCLOSE CHILD ABUSE
25 RECORDS TO THE DEFENDANT'S ATTORNEY AS PROVIDED FOR BY LAW AND COURT RULE.
26 THE DEFENDANT'S ATTORNEY MAY SHARE THE CHILD ABUSE RECORDS WITH A PERSON
27 WHO IS EMPLOYED TO ASSIST WITH THE DEFENSE IN THE CRIMINAL CASE, BUT THE
28 CHILD ABUSE RECORDS MAY NOT BE FURTHER DISSEMINATED WITHOUT A COURT ORDER
29 ON A FINDING OF GOOD CAUSE.

30 E. A PERSON WHO RECEIVES A CHILD ABUSE RECORD PURSUANT TO
31 SUBSECTION B OF THIS SECTION MAY NOT FURTHER DISSEMINATE THE RECORD.

32 39-178. Death scene images; deceased minor and child abuse
33 records; civil action; enforcement; investigation
34 authority

35 A. THE ATTORNEY GENERAL, THE COUNTY ATTORNEY IN THE COUNTY WHERE
36 THE RECORD ORIGINATED OR THE CITY OR TOWN ATTORNEY IN THE CITY OR TOWN
37 WHERE THE RECORD ORIGINATED MAY BRING A CIVIL ACTION TO ENFORCE THIS
38 ARTICLE. IN ANY ACTION UNDER THIS ARTICLE, THE COURT MAY ORDER ALL OF THE
39 FOLLOWING:

40 1. THE IMMEDIATE REMOVAL OF THE DECEASED MINOR RECORD, DEATH SCENE
41 IMAGE OR CHILD ABUSE RECORD FROM ANY PLATFORM OR PUBLICATION THAT IS
42 SUBJECT TO THE COURT'S JURISDICTION.

43 2. THE IMMEDIATE DESTRUCTION OF ANY DECEASED MINOR RECORD, DEATH
44 SCENE IMAGE OR CHILD ABUSE RECORD THAT IS IN THE PERSON'S POSSESSION.

45 3. INJUNCTIVE RELIEF TO PREVENT ANY FURTHER MONETIZATION OR
46 DISTRIBUTION OF THE DECEASED MINOR RECORD, DEATH SCENE IMAGE OR CHILD
47 ABUSE RECORD.

1 B. THE ATTORNEY GENERAL, THE COUNTY ATTORNEY OR THE CITY OR TOWN
2 ATTORNEY WHO HAS THE AUTHORITY TO FILE A CIVIL ACTION PURSUANT TO THIS
3 SECTION HAS THE AUTHORITY TO INVESTIGATE ANY ALLEGED VIOLATION OF THIS
4 ARTICLE, INCLUDING THE POWER TO SUBPOENA RECORDS OR EXAMINE A PERSON UNDER
5 OATH.

6 Sec. 5. Emergency

7 This act is an emergency measure that is necessary to preserve the
8 public peace, health or safety and is operative immediately as provided by
9 law.

10 Enroll and engross to conform

11 Amend title to conform

WENDY ROGERS

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